

Yogesh vs Priya on 8 July, 2024

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CM(M) 2862/2024 & CM APPL. 37487/2024
YOGESH

PRIYA

CORAM:

HON'BLE MR. JUSTICE MANOJ JAIN

% 08.07.2024

1. Present petition has been filed under Article 227 of the Constitution of India seeking to set aside impugned order dated 20.02.2024 & 08.03.2024.

2. As per Mr. Karan Pal Singh, learned counsel for petitioner, petitioner Yogesh has filed a petition seeking divorce which has been registered as HMA 31340/2023 and when the respondent had appeared before the learned Trial Court on 20.02.2024, learned Trial Court burdened the petitioner with cost of Rs. 11,000/-. Matter was thereafter taken up by learned Trial Court on 08.05.2024 and since cost was not paid, matter was adjourned sine die and liberty was granted to the petitioner to revive the same once he had complied with the direction regarding payment of litigation expenses.

3. Admittedly, it is case under Section 24 of Hindu Marriage Act and direction was with respect to grant of litigation expenses is neither unjustified nor unreasonable.

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4. According to the petitioner, respondent should have been directed to approach the Legal Service Authority is totally misplaced as even the petitioner has chosen to come through a private counsel.

5. Moreover, keeping in mind the litigation expenses, in a metro capital like Delhi, amount of Rs. 11,000/- as litigation expenses is not excessive or arbitrary. When asked, learned counsel for petitioner states that petitioner is working with Adarsh Services and is getting Rs. 13,600/- per month.

6. Be that as it may, keeping in mind the overall facts and circumstances of the case, I do not find any kind of illegality and impropriety either of the impugned orders.

7. Present petition is accordingly dismissed.

MANOJ JAIN, J JULY 8, 2024/dr This is a digitally signed order.

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